

Applying a multiplier is discretionary. (*Mikhael poor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 248.) “Of course, the trial court is not required to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) “In each case, the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment, e.g., because the client has agreed to pay some portion of the lodestar amount regardless of outcome. It should also consider the degree to which the relevant market compensates for contingency risk, extraordinary skill, or other factors under *Serrano III*.” (*Ibid.*)

“[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation.” (*Ketchum*, 24 Cal.4th at 1139.)

Additionally, while the case was handled on a contingent fee basis, the one-sided mandatory statutory fee award reduced the risk otherwise inherent in a contingent fee case. (See *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1174-1175 [discussing FEHA fees award].)

The court DENIES Plaintiff’s request for a multiplier, as the case did not involve any novel or difficult legal or factual issues. This was a simple lemon law action, which did not require any complex litigation.

In sum, Plaintiff is awarded a total attorneys fee award of \$18,045.00.

Plaintiff to give notice.

10	Yang vs. General Motors LLC	<u>Motion for Attorney’s Fees, Costs, and Expenses</u> The court GRANTS in part Plaintiff Ki YANG’s motion for attorney fees and costs. The parties settled this Song-Beverly case before trial with Defendant agreeing to pay reasonable attorney fees, costs and expenses to Plaintiff as the prevailing party. As such, there is no dispute among the parties as to Plaintiff’s right to recover her attorney fees, costs, and expenses. The Song-Beverly Act provides for attorney fees, costs, and expenses to the prevailing party in a lemon law case. (Civ. Code § 1794(d).) “Determining a reasonable attorney fee award in Song-Beverly Act cases “ordinarily begins with the ‘lodestar,’ [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate.” ’ [Citation.]” (<i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, 1157-1158.) “The Song-Beverly Act’s attorney fee provision “requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable.” [Citation.]” (<i>Id.</i> at 1158.) “The reasonable hourly rate is that prevailing in the community for similar work.” (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095; see also <i>Chacon v. Litke</i> (2010) 181 Cal.App.4th 1234, 1260 [“reasonable market value” of counsel’s services is measure of reasonable hourly rate].) The relevant “community” is generally based on where the services were rendered, i.e., where the court is located. (<i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1242-1243.) “Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community in Orange County.” (<i>Tidrick</i>, 112 Cal.App.5th at 1157.) The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (<i>Heritage Pac. Fin., LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009; <i>569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 437.) The
----	-----------------------------	---